2025 S C M R 1691

[Supreme Court of Pakistan]

Present: Athar Minallah and Shahid Bilal Hassan, JJ

SALAHUDDIN AHMED ---Petitioner

Versus

KHURRAM SULTAN ABBASI ---Respondent

Civil Petition No. 900-K of 2024, decided on 20th November, 2024.

(Against the judgment dated 27.09.2024 of the High Court of Sindh, Karachi passed in F.R.A. No. 06 of 2018).

(a) Sindh Rented Premises Ordinance (XVII of 1979)---

----S. 15(2)(vii)---Eviction of tenant, seeking of---Ground---Bona fide personal need of the landlord is sufficient reason to seek eviction of tenant---It is the sole choice and prerogative of the landlord to choose the premises which better suits him as he is the best judge of his personal need and he is not under any legal obligation to act upon dictation of the tenant---Personal bona fide need is accepted as a sufficient reason to seek eviction of the tenant.

Dr. Abdul Raziq v. Mubeen-ul-Haq Khan and others 1991 SCMR 1527; Muhammad Munir v. Additional District Judge and others 1991 SCMR 453; Wajahat Hasan v. Khawaja Bashir Ahmed 1993 SCMR 707; Mujahid Hussain Shah v. K.S.B. Pumps Company Ltd. and 2 others PLD 1996 SC 787; Abdul Wahid Lehri v. Arbab Mir Nawaz and 3 others 1997 SCMR 1789; Abdul Rashid v. Syed Zafar Yab Ali and 3 others 1999 SCMR 2478; Ishrat Yar Khan v. Abdul Rehman PLD 2000 SC 783; Karachi Taneery (Pvt.) Ltd. v. Muhammad Yousaf through Legal Heirs 2002 SCMR 680; Jahangir Rustam Kakalia through its legal heirs v. Messrs Hashwani Sales and Services (Pvt.) Ltd. 2002 SCMR 241; Feroz ud Din and another v. Additional District Judge, Karachi East and another 2012 SCMR 1679 and Muhammad Hayat v. Muhammad Miskeen (decd.) through L.Rs. and others 2018 SCMR 1441 rel.

(b) Sindh Rented Premises Ordinance (XVII of 1979)---

----S. 15(2)(vii)---Eviction petition---Relationship between landlord and tenant, denial of---Suit for specific performance with respect to suit property filed by the tenant---Effect---Where a tenant has entered into an agreement with the vendor and has purchased the demised premises, for which he has instituted suit for specific performance and he denies the proprietary rights of the landlord on the ground of agreement to sell then he (tenant) is bound to first of all deliver the possession of the premises in question and then to contest his proprietary rights in the property and if ultimately he (tenant) succeeds in his suit for specific performance he can then enforce the same---Moreover, in absence of any evidence in rebuttal of title of landlord, there would be a strong presumption of existence of tenancy between the parties.

Barkat Masih v. Mansoor Ahmad (deceased) through LRs. PLD 2005 FSC 105 and Shajar Islam v. Muhammad Siddique and 2 others PLD 2007 SC 46 rel.

(c) Sindh Rented Premises Ordinance (XVII of 1979)---

----S. 15---Eviction of tenant---Tenancy, expiry of---Tenant continuing to hold possession of premises without landlord's consent---Effect and scope---After expiration of the tenancy period, a tenant, though can continue to hold over the possession of the rented premises, but his tenancy is rendered invalid, in that, it has come to an end and if there is no express consent of the landlord to extend the tenancy period the tenant shall be guilty of having infringed the condition of tenancy, rendering him liable to be evicted.

Waqar Zafar Bakhtawari and 6 others v. Haji Mazhar Hussain Shah and others PLD 2018 SC 81 rel.

Abdul Qadir Khan, Advocate Supreme Court for Petitioner (via video-link from Karachi).

Nemo for Respondent.

Date of hearing: 20th November, 2024.

ORDER

SHAHID BILAL HASSAN, J.---This petition has been directed against judgment dated 27.09.2024 of High Court of Sindh, Karachi, passed in F.R.A. No. 06 of 2018.

2. We have heard learned counsel for the petitioner and have perused the record. It is observed that it is the sole choice and prerogative of the landlord to choose the premises which better suits him as he is the best judge of his personal need and he is not under any legal obligation to act upon dictation of the tenant. Personal bona fide need has been accepted as sufficient reason to seek eviction of the tenant.[1]

3. So far as the claim of the petitioner that he has entered into an agreement with the vendor and has purchased the demised premises, for which he has instituted suit for specific performance, is concerned, it is an established principle that if a tenant denies the proprietary rights of the landlord on the ground of any agreement to sell, then he is bound to first of all deliver the possession of the premises in question and then to contest his proprietary rights in the property and if ultimately he succeeds in getting relief from the Court of competent jurisdiction and decree is passed in his favour he can enforce the same according to law with all its consequences.[2] Moreover, in absence of any evidence in rebuttal of title of landlord, there would be a strong presumption of existence of tenancy between the parties.[3] This Court has held that:-[4]

> '12. Thus, we conclude that as after expiration of the tenancy period, a tenant, though can continue to hold over the possession of the rented premises, but his tenancy is rendered invalid, in that, it has come to an end and if there is no express consent of the landlord to extend the tenancy period the tenant shall be guilty of having infringed the condition of tenancy, rendering him liable to be evicted under section 17(2)(ii)(b) of the Ordinance, 2001.'

4. In view of the above, we find it not a fit case for grant of leave. Resultantly, leave is refused, consequent whereof the petition stands dismissed.

UN/S-18/SC Petition dismissed.

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